

HOUSE No. 1391

The Commonwealth of Massachusetts

PRESENTED BY:

Paul McMurtry

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to personal care management hours.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Paul McMurtry</i>	<i>11th Norfolk</i>	<i>1/17/2025</i>

HOUSE No. 1391

By Representative McMurtry of Dedham, a petition (accompanied by bill, House, No. 1391) of Paul McMurtry relative to personal care management hours under MassHealth. Health Care Financing.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to personal care management hours.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 1. For the purposes of this Act:

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3 "Personal Care Management (PCM)" refers to services provided to MassHealth members
4 to assist in coordinating and managing their healthcare and daily activities.

5 "Hearing" refers to any formal review process, including administrative hearings, where a
6 client or their representative contests decisions regarding their PCM hours or services.

7 "PCM hours" refers to the number of hours of Personal Care Management services that
8 are authorized for a client under MassHealth.

9 Section 2.

(a) The Executive Office of Health and Human Services (EOHHS) shall direct MassHealth to amend its regulations to allow for the adjustment of Personal Care Management hours for clients when their service needs change due to the hearing process.

(b) The regulations shall establish a process by which:

Request for Adjustments: Clients or their representatives can request an adjustment to their PCM hours when a hearing is scheduled that may alter the client's care plan, either due to changes in care needs, available resources, or new information presented during the hearing.

Interim Adjustments: Pending the outcome of the hearing, MassHealth shall allow interim adjustments to PCM hours based on the client's current documented needs. These adjustments shall be in effect during the pendency of the hearing process.

Notification of Changes: MassHealth shall provide written notification to clients of any changes to their PCM hours, both prior to and after hearings, explaining the reason for the adjustments and how long the interim changes will remain in effect.

Review and Final Decision: The final decision regarding the client's PCM hours, based on the outcome of the hearing, shall be implemented immediately upon the conclusion of the hearing and after MassHealth reviews the outcome. Any adjustments to PCM hours made during the hearing process shall be reviewed and finalized promptly to ensure continuity of care.

Section 3.

(a) MassHealth shall file the proposed changes to its regulations within 120 days of the enactment of this legislation.

(b) The amended regulations shall take effect within 180 days of the passage of this Act.

31 (c) EOHHS shall provide a public comment period for stakeholders, including clients,
32 advocates, healthcare providers, and other interested parties, to provide feedback on the proposed
33 regulations.

34 Section 5.

35 (a) EOHHS shall establish a process to monitor the implementation of the amended
36 regulations and to track any complaints or issues raised by clients or their representatives
37 regarding the adjustment of PCM hours during hearings.

38 (b) A report on the effectiveness of these adjustments, including the impact on care
39 quality, client satisfaction, and administrative processes, shall be submitted to the Joint
40 Committee on Health Care Financing no later than one year after the regulations are
41 implemented.

42 Section 6.

43 (a) EOHHS shall ensure that adequate resources are allocated for the training of
44 MassHealth staff on the revised processes and regulations related to the adjustment of PCM
45 hours during hearings.

46 (b) Any costs associated with the implementation of this Act shall be covered by existing
47 funds allocated to MassHealth for program administration.